

Franciscus Dylan Rosario,
7624 Melody,
Rohnert Park, CA 94928,
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**SUPPLEMENTAL MEMORANDUM OF
POINTS AND AUTHORITIES
RE PROBABILITY OF PREVAILING
(Code Civ. Proc., § 425.16(b))**

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TABLE OF AUTHORITIES

Cases

Sweetwater Union High Sch. Dist. v. Gilbane Bldg. Co., (2019) 6 Cal.5th 931

Simmons v. Allstate Ins. Co., (2001) 92 Cal.App.4th 1068

1 *JKC3H8 v. Colton*, (2013) 221 Cal.App.4th 468
2 *Engalla v. Permanente Medical Group*, (1997) 15 Cal.4th 951
3 *Flatley v. Mauro*, (2006) 39 Cal.4th 299
4 *Action Apartment Ass’n v. City of Santa Monica*, (2007) 41 Cal.4th 1232

5 **Statutes**

6 Code Civ. Proc., § 425.16
7 Cal. Rules of Court, rule 3.1110(f)

8 **I. STEP TWO AND THE RECORD UNDER § 425.16(B)(2)**

9 Code of Civil Procedure § 425.16(b)(2) requires the court to consider pleadings and affidavits on
10 the special motion to strike. *Sweetwater Union High Sch. Dist. v. Gilbane Bldg. Co.* (2019) 6
11 Cal.5th 931 confirms that admissible evidence includes materials appropriately presented with the
12 motion record. Lodging the proposed Third Amended Complaint for step-two consideration assists
13 the Court in assessing probability of prevailing on claims actually pleaded—including scienter
14 at the **knowing falsity or reckless disregard** standard pleaded in Sections I–VI of the lodged
15 pleading.

17 **II. DISTINGUISHING *SIMMONS* AND *JKC3H8***

18 *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068 and *JKC3H8 v. Colton* (2013) 221
19 Cal.App.4th 468 address impermissible amendments deployed to defeat an anti-SLAPP motion.
20 Here, Plaintiff is **not** moving to amend at the anti-SLAPP hearing. The operative amendment
21 vehicle is the **separately noticed** motion for leave calendared **May 26, 2026**. The lodging presents
22 the **same core claims** at the **same** scienter floor grounded in California Supreme Court reckless-
23 disregard authority: *Engalla v. Permanente Medical Group* (1997) 15 Cal.4th 951, 974; *In re*
24 *Marriage of Modnick* (1983) 33 Cal.3d 897, 905–907; *Estate of Sanders* (1985) 40 Cal.3d 607,
25 614–616; *Bily v. Arthur Young* (1992) 3 Cal.4th 370, 407–408; *Wilson v. 21st Century Ins. Co.*
26 (2007) 42 Cal.4th 713, 720–721; *Shafer v. Berger, Kahn, Weaton, Smith, Mendelsohn & Fitzgerald*
27 (2003) 107 Cal.App.4th 54, 79–80.

III. *FLATLEY / ACTION APARTMENT*

At step two, the lodged complaint sets forth the Nine-Point Chain (TAC § II) tying defendants’ conduct to professional deceit and illegality sufficient to inform litigation-privilege analysis at probability of prevailing. *Flatley v. Mauro* (2006) 39 Cal.4th 299; *Action Apartment Ass’n v. City of Santa Monica* (2007) 41 Cal.4th 1232.

IV. PRAYER

Plaintiff asks the Court to consider the lodged Third Amended Complaint at step two **alongside** the Second Amended Complaint, as evidence of the claims and scienter allegations plaintiff actually presses—without merging the lodging with the leave motion, which remains on the May 26, 2026 motion calendar.

V. STEP-ONE REINFORCEMENT (BRIEF PREVIEW; NOT BEFORE THE COURT TODAY)

This memorandum is a **step-two** filing under Code Civ. Proc. § 425.16(b)(2). Plaintiff nevertheless previews step-one solely to orient the Court to the **Merged Prong-One Opposition Checklist** (Apr. 28, 2026), separately lodged in this action under a contemporaneous Notice of Lodging for record-preservation purposes only and **not** for adjudication on the **April 30, 2026** MFL-SAC hearing, the May 26, 2026 leave hearing, or on any earlier hearing date. The detailed argument and authorities will be tendered in Plaintiff’s forthcoming Opposition to Defendant CSAA’s special motion to strike noticed for **May 13, 2026**, Dept. 302.

In summary form:

- **Part I — Shared Items 1–13** (case-neutral prong-one defects): CSAA cannot satisfy *Park*’s “speech itself is the wrong” requirement because the operative claims pleaded in this action sound in non-communicative regulatory misconduct (premature claim-file closure at twenty-one days without retrieving the four reasonably-available “Silent Witnesses”: 911 audio + SF-

DEM CAD record; SFPD body-worn camera footage; SFPD CAD log; supplemental SFPD report) and in conduct illegal as a matter of law under *Flatley v. Mauro* (2006) 39 Cal.4th 299, 317–320. Items 9 (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1268–1269; *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115) and 12–13 (*Flatley*; Civ. Code § 47(b) outer limits via *Kimmel v. Goland* (1990) 51 Cal.3d 202, 211 and *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056) define the outer perimeter on which the defense motion fails.

- **Part III — Items 802-A through 802-F** (case-specific): the Feb. 25, 2021 written denial letter (Claim No. 1004-09-1054, Sarah Rash) is the after-the-fact written *evidence* of the underlying non-communicative regulatory failure, not the actionable wrong. The 21-day denial letter to an unrepresented direct third-party claimant is ordinary first-party-style claims-handling correspondence governed by 10 CCR §§ 2695.4 / 2695.7(b)–(d) and Insurance Code § 790.03(h)(1)/(3)/(5), and by the duty to investigate thoroughly and fairly under *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818–819 and *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721 — not “petitioning” within § 425.16(e). Item 802-D mirrors companion Case 801 item 801-D on the **Position-A / Position-B** structural-impossibility spine: Civ. Code §§ 2330, 2338 and Evid. Code § 1222 attribute to CSAA itself both the 2025 panel-counsel disclaimers (in companion CGC-25-631801) and the Feb. 25, 2021 “concluded investigation” representation, foreclosing any honest-belief defense (*Engalla v. Permanente Medical Group* (1997) 15 Cal.4th 951, 974) and any “genuine dispute” defense at *Wilson v. 21st Century*, *supra*, 42 Cal.4th at 723.

The lodged checklist is offered as a road-map for the May 13, 2026 prong-one ruling; it is **not** a request that the Court reach prong one on the April 30, 2026 MFL-SAC hearing or the May 26, 2026 leave motion. The probability-of-prevailing materials in §§ I–IV above remain Plaintiff’s step-two record under *Sweetwater* and § 425.16(b)(2).

Dated: April 28, 2026



Franciscus Dylan Rosario
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com